

EMPLOYMENT AND CONFIDENTIALITY AGREEMENT

THIS EMPLOYMENT AND CONFIDENTIALITY AGREEMENT (the "Agreement") is entered into on this **1st day of April, 2023** (the "Effective Date"),

BY AND BETWEEN:

NEXORA TECHNOLOGIES PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 2013, bearing CIN **U72900TG2019PTC145678**, having its registered office at **Plot No. 42, HITEC City, Madhapur, Hyderabad - 500081, Telangana, India**, represented herein by its authorized signatory **Mr. Sandeep Rao**, Director (hereinafter referred to as the "Company", which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns);

AND

MR. ARJUN SHARMA, son of **Mr. R. Sharma**, aged **27 years**, holding PAN **BXYP51234K** and Aadhaar No. **XXXX-XXXX-4821**, residing at **Flat No. 403, Green Meadows Apartments, HSR Layout, Bengaluru - 560102, Karnataka, India** (hereinafter referred to as the "Employee", which expression shall, unless repugnant to the context or meaning thereof, include his heirs, legal representatives, executors, and administrators).

(The Company and the Employee are hereinafter individually referred to as a "Party" and collectively as the "Parties".)

WHEREAS:

A. The Company is engaged in the business of software development, data analytics, and artificial intelligence-based solutions and possesses proprietary information, confidential data, trade secrets, and intellectual property of substantial commercial value.

B. The Employee represents and warrants that he possesses the requisite educational qualifications, technical skills, and professional experience necessary to perform services for the Company.

C. The Company desires to employ the Employee, and the Employee agrees to accept such employment, subject to the terms and conditions set forth herein.

NOW, THEREFORE, in consideration of the mutual covenants and promises contained herein, the sufficiency of which is hereby acknowledged, the Parties hereby agree as follows:

1. APPOINTMENT AND TERM

1.1 The Company hereby appoints the Employee in the capacity of **Software Development Engineer - Grade II**, and the Employee hereby accepts such appointment.

1.2 The employment shall commence on the Effective Date and shall continue on a full-time basis unless terminated in accordance with the provisions of this Agreement.

1. DUTIES AND OBLIGATIONS

2.1 The Employee shall diligently, faithfully, and to the best of his skill and ability perform such duties and responsibilities as may be assigned by the Company from time to time.

2.2 The Employee shall devote his full working time and attention to the business of the Company and shall not, during the term of employment, directly or indirectly engage in any other employment, consultancy, or business activity without the prior written consent of the Company.

1. REMUNERATION AND BENEFITS

3.1 The Employee shall be entitled to a gross monthly remuneration of **INR 95,000/- (Rupees Ninety-Five Thousand Only)**, payable on or before the 5th working day of each calendar month, subject to applicable statutory deductions including provident fund, professional tax, and income tax.

3.2 The Employee shall be eligible for benefits including leave, insurance, and incentives strictly in accordance with Company policies, as amended from time to time, without creating any vested or contractual right.

1. CONFIDENTIAL INFORMATION

4.1 For the purposes of this Agreement, "Confidential Information" shall mean all information, whether written, oral, electronic, or otherwise, relating to the business, operations, clients, customer data, pricing models, source code, algorithms, databases, technical documentation, product roadmaps, trade secrets, and intellectual property of the Company.

4.2 The Employee agrees that he shall not, during or after the term of employment, directly or indirectly disclose, communicate, publish, or use any Confidential Information except strictly in the course of performing his duties for the Company.

1. INTELLECTUAL PROPERTY

5.1 All inventions, discoveries, developments, improvements, works of authorship, software code, documentation, processes, and other intellectual property conceived or created by the Employee during the course of employment shall be deemed to be "works made for hire".

5.2 All right, title, and interest in such intellectual property shall vest exclusively and irrevocably in the Company, and the Employee hereby assigns all such rights to the Company.

1. NON-SOLICITATION AND NON-COMPETE

6.1 The Employee shall not, during employment and for a period of **twelve (12) months** thereafter, directly or indirectly solicit or attempt to solicit any employee, consultant, client, or customer of the Company.

6.2 The Employee shall not engage in any business activity that competes with the Company within the territory of **India** for a period of **six (6) months** following termination, to the extent permitted under applicable law.

1. TERMINATION

7.1 Either Party may terminate this Agreement without cause by providing **thirty (30) days'** prior written notice.

7.2 The Company may terminate the employment with immediate effect in the event of misconduct, breach of confidentiality, fraud, or material violation of Company policies.

1. LIMITATION OF LIABILITY

8.1 To the maximum extent permitted by law, the Company shall not be liable for any indirect, incidental, special, or consequential damages arising out of or in connection with this Agreement.

1. GOVERNING LAW AND JURISDICTION

9.1 This Agreement shall be governed by and construed in accordance with the laws of **India**.

9.2 The courts at **Hyderabad, Telangana** shall have exclusive jurisdiction.

1. MISCELLANEOUS

10.1 Entire Agreement: This Agreement constitutes the entire understanding between the Parties and supersedes all prior communications.

10.2 Severability: If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

10.3 Amendment: No amendment or modification shall be valid unless made in writing and signed by both Parties.

IN WITNESS WHEREOF, the Parties have executed this Agreement on the date first written above.

For **Nexora Technologies Private Limited**

Signature: ____ Name: **Mr. Sandeep Rao** Designation: Director Date: 01 April 2023

For the **Employee**

Signature: ____ Name: **Mr. Arjun Sharma** Date: 01 April 2023

Witnesses:

1. Name: **Ms. Kavya Nair** | Signature: _____ Address: Hyderabad, Telangana

2. Name: **Mr. Rakesh Verma** | Signature: _____ Address: Bengaluru, Karnataka

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